

The court will continue the hearing to allow the parties to meet and confer, and only if efforts are truly unsuccessful will it rule on the merits. After such good faith attempts, defendant shall file a declaration specifically detailing the efforts made.

Tentative Ruling

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Tentative Ruling

Re: ***Zelaya v. Alamco, Inc.***
Superior Court Case No. 25CECG04131

Hearing Date: May 27, 2026 (Dept. 403)

Motion: By Plaintiff to Quash Subpoenas

Tentative Ruling:

To deny the motion to quash as moot, as the subpoenas at issue have been withdrawn. To deny all requests for sanctions.

Explanation:

Plaintiff in this personal injury action filed a motion to quash three subpoenas issued by defendant for plaintiff's medical and insurance records. The subpoenas have been withdrawn and are to be reissued with the modifications requested by plaintiff. Accordingly, as plaintiff recognizes, the motion to quash itself is moot, as the discovery dispute has been resolved. The only remaining issue is whether plaintiff should be granted the \$8,460 in monetary sanctions she seeks, because the subpoenas were not withdrawn until after the motion to quash was filed.

Certainly the court *can* impose sanctions against a party despite a motion to quash being rendered moot when the subpoenas were not withdrawn in a timely manner and the moving party expended the time and expense to prepare the motion. (See *Evilsizor v. Sweeney* (2014) 230 Cal.App.4th 1304, 1311; *Sinaiko Healthcare Consulting, Inc. v. Pacific Healthcare Consultants* (2007) 148 Cal.App.4th 390, 404.) In making an order on a motion to quash, "the court *may in its discretion* award the amount of the reasonable expenses incurred in making or opposing the motion, including reasonable attorney's fees, if the court finds the motion was made ... in bad faith or without substantial justification...." (Code Civ. Proc., § 1987.2, subd. (a), emphasis added.)

The court finds that it was not reasonable for plaintiff's counsel to proceed with filing the motion, and therefore awards no sanctions. Based on the document production date of December 22, 2025, plaintiff's deadline to file a motion to quash was December 17, 2025. Plaintiff filed the motion on December 16, even though on December 11, again on December 12, and again on December 16, defense counsel communicated to plaintiff's counsel that the subpoenas were on hold while defendant addressed plaintiff's concerns about the language and scope of the subpoenas. On December 12, four days before the motion to quash was filed, defense counsel explicitly communicated that there would be no forthcoming production pursuant to the subpoenas while the parties were working out the dispute. Counsel stated, "While they are on hold, the vendor will not be obtaining documents until we provide an update. The subpoenas will not be re-activated until our meet and confer efforts have resolved the dispute." (See Wu-Chu Decl., Exhs. B, D.) On December 16, defense counsel proposed modifications of the language to alleviate plaintiff's concerns, and withdrawal and reissuance of the subpoenas accordingly. (Wu-Chu Decl., Exh. E.)

Pursuant to California Rules of Court, rule 3.1312(a), and Code of Civil Procedure section 1019.5, subdivision (a), no further written order is necessary. The minute order adopting this tentative ruling will serve as the order of the court and service by the clerk will constitute notice of the order.

Issued By: img on 5-26-26
(Judge's initials) (Date)